

26VECV00891 26VECV00891

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Tentative Ruling

Baker v. Harbor Freight Tools USA,

Case no. 26VECV00891

Hearing date July 31, 2026

Defendant

Harbor Freight's Motion for Forum Non Conveniens

Plaintiff

Texas resident Baker sues defendants Harbor Freight Tools USA, Inc. and Harbor Freight Tools Texas, LP for product liability, alleging injuries resulting from the failure of a 2000-Pound Capacity Low-Profile Transmission Jack purchased from defendant Harbor Freight Tools Texas, LP. Defendant Harbor Freight Tools USA moves for forum non conveniens, seeking to transfer venue to Texas. Plaintiff opposes.

The

court shall dismiss or stay an action if it "finds that in the interest of substantial justice an action should be heard in a forum outside this state." Code Civ. Proc. §410.30(a). Dismissal of an action is warranted when litigation would "be more appropriately and justly tried elsewhere." *Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 751 "In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a 'suitable' place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California." *Id.* at 751 (citing *Piper*

Aircraft Co. v. Reyno (1981) 454 U.S. 235, 259-61).

Moving

defendant argues the only California contact is that moving defendant's principal place of business/headquarters is in California. See Decl. O'Hern, para.

3. The truck jack alleged to have failed was purchased in Texas. Id. at para. 4. The truck jack was manufactured and designed in Asia by nonparty, third-party producers. Compl., paras. 7-8. The truck jack was not sold, designed or manufactured in California.

Plaintiff

is a Texas resident. Compl., para. 14, exh. A. Plaintiff was injured in Mills County, Texas. Id. at para. 14, exh. A. Plaintiff received all medical care in Texas. Id. at para. 26. Plaintiff, the subject truck jack, some liability witnesses and all of plaintiff's damages witnesses reside in Texas. Id. at paras. 14, 26.

Moving

defendant argues there is insufficient basis to try this matter in California and stipulates to jurisdiction in Texas and to tolling all applicable statutes of limitations. Decl. O'Hern, para. 9.

Plaintiff

argues forum non conveniens is a drastic remedy which should be sparingly employed. Plaintiff argues moving defendant failed to satisfy the Stangvik, supra prongs. Plaintiff asserts his claim might be time-barred by the statute of limitations in Texas, preventing a finding that Texas is a suitable alternative forum. See Roulier v. Cannondale (2002) 101

Cal.App.4th 1180, 1186 (holding a forum is suitable if there is jurisdiction and no statute of limitations bar to hearing the case on the merits). This is a valid concern, but this concern is alleviated due to moving defendant's agreement to stipulate to jurisdiction and tolling of all applicable statutes of limitations.

Arguments

that a Texas court may choose not to allow plaintiff to file his complaint in Texas is speculative and not a basis to deny this motion. Similarly, plaintiff's argument that Doe defendants remain unnamed and may not be suitable defendants in Texas is not well taken. No party has named any such Doe defendants/cross-defendants. Speculative arguments as to a possible eventuality

regarding an unknown, unnamed defendant cannot defeat a motion for forum non conveniens where it is clear the gravamen of the case is in Texas.

Plaintiff

argues both private and public interests favor California jurisdiction. The private and public interest factors must be applied flexibly, without giving undue emphasis to any one element. Stangvik, *supra*, at 753. "The private interest factors are those that make trial and the enforceability of the judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses." Roulier, *supra*, at 1188.

This

factor heavily favors a transfer to Texas; the majority of all witnesses, including plaintiff, his treating professionals and percipient witnesses reside in Texas. To the extent any corporate witnesses employed by moving defendant are called to testify, moving defendant represents it will be minimally burdensome to produce said witnesses in Texas. The court will inquire as to whether defendant would agree to bear the cost of making such witnesses available for testimony in Texas, without undue cost to plaintiff.

The

public interest factors include: (1) avoiding overburdening local courts with congested calendars; (2) protecting the interests of potential jurors; and (3) weighing the competing interests of California and the alternate jurisdiction in the litigation. Stangvik, *supra*, at 751.

While

California has an interest in regulating allegedly unsafe product designs, this case cannot be considered of public interest to California or its residents. "The jurisdiction with the greater interest should bear the burden of entertaining the litigation." *Id.* at 757. The incident occurred in Texas, resulted in injury to a Texas resident, the majority of witnesses are Texas residents, and the allegedly defective product is neither produced nor designed in California. The only tie to California is that one defendant has its principal place of business in California. This matter is more properly venued in Texas; there is no basis to keep this matter in California. GRANTED.